

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #10	CCRB Case #: 202100410	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 01/19/2021 3:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/19/2022	Precinct: 120
Date/Time CV Reported Tue, 01/19/2021 8:15 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 01/19/2021 8:15 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Dawson	02588	955858	120 PCT
2. POM Matthew Panik	06368	961064	120 PCT
3. LT Matthew Harrison	00000	930323	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mario Avenoso	16221	957343	120 PCT
2. POF Vanessa Sherlock	15588	944655	120 PCT
3. PO James Krebs	06991	952951	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Matthew Harrison	Abuse: Lieutenant Matthew Harrison damaged § 87(2)(b)'s property.	A . Exonerated
B . LT Matthew Harrison	Abuse: Lieutenant Matthew Harrison entered § 87(2)(b) in Staten Island.	B . Exonerated
C . LT Matthew Harrison	Abuse: Lieutenant Matthew Harrison searched § 87(2)(b) in Staten Island.	C . Exonerated
D . POM William Dawson	Abuse: Police Officer William Dawson threatened § 87(2)(b) with the use of force.	D . Exonerated
E . POM William Dawson	Force: Police Officer William Dawson used physical force against § 87(2)(b)'s cat.	E . Unfounded
F . POM Matthew Panik	Force: Police Officer Matthew Panik used physical force against § 87(2)(b)'s cat.	F . Unfounded

Case Summary

On January 19, 2021, § 87(2)(b) called the CCRB and filed the following complaint via the Call Processing System (**BR07**).

On January 19, 2021, at approximately 3:00 p.m., § 87(2)(b) and his fiancée, § 87(2)(b) were in their home, § 87(2)(b) in Staten Island. § 87(2)(b) heard three bangs on the apartment door, and therein Lieutenant Matthew Harrison, accompanied by Police Officer William Dawson, Police Officer Matthew Panik, Police Mario Avenoso, Police Officer Vanessa Sherlock, and Police Officer James Krebs of the 120th Precinct, entered the apartment after Lt. Harrison instructed PO Panik to “take the door” (**Allegation A: Abuse of Authority-Property Damaged, exonerated; Allegation B: Entry of Premises, exonerated; Allegation C: Abuse of Authority-Search of Premises, exonerated**). After entering, PO Dawson drew and pointed his Taser at § 87(2)(b) (**Allegation D: Abuse of Authority-Threat of Force, exonerated**). After searching the apartment, the officers left, wherein § 87(2)(b) alleged that when she attempted to replace the front door, she noticed her pet kitten had been killed as a result of the officers’ forced entry (**Allegations E and F: Force-Other, unfounded**). Neither § 87(2)(b) nor § 87(2)(b) was arrested or issued any summonses as a result.

The investigation obtained (6) Body-Worn Camera (“BWC”) videos from the responding officers (**BR01-BR06**), which captured the material aspects of this incident.

Findings and Recommendations

Allegation A—Abuse of Authority: Lieutenant Matthew Harrison damaged § 87(2)(b)s property.

Allegation B—Abuse of Authority: Lieutenant Matthew Harrison entered § 87(2)(b) in Staten Island.

Allegation C—Abuse of Authority: Lieutenant Matthew Harrison searched § 87(2)(b) in Staten Island.

On January 19, 2021, at 8:15 p.m., § 87(2)(b) filed this complaint (**BR07**) as the complainant and victim, wherein he stated that earlier that day, a group of officers forced entry into his home, without a warrant or reason to enter, by breaking down his front door, which subsequently crushed his pet kitten to death. § 87(2)(b) further stated that the officers searched the entire apartment without recovering anything, remarked that they had received a “false call,” and then left the scene.

The following day, on January 20, 2021, during a follow up phone call, § 87(2)(b) § 87(2)(g) said that during the incident, he, § 87(2)(b) and § 87(2)(b) whom § 87(2)(b) referred to as “his brother, though not his blood brother,” were in his home when the group of officers forced entry. The officers asked to speak to § 87(2)(b) and § 87(2)(b) told them that he was not there. The officers told § 87(2)(b) that they responded after someone called 911 to report that he was not taking his medication. After the officers left, § 87(2)(b) picked up his front door and noticed his kitten had been killed as a result of the officers’ entry into his apartment.

On January 22, 2021, § 87(2)(b) provided a brief third statement (**BR09**), wherein he § 87(2)(g) said, for the first time, that he was not present for the incident, and rather that his “twin brother, § 87(2)(b) and § 87(2)(b) were the only individuals present for the incident. As § 87(2)(b) now stated that he was not present for the incident, he was not interviewed.

Additionally, during the above-referenced call, § 87(2)(b) stated that § 87(2)(b) would mail in a written statement in lieu of being interviewed. However, § 87(2)(b) refused to provide any contact information for § 87(2)(b) or provide any alternative method of independently establishing contact with him. Moreover, while searches of CLEAR (**BR10**) and LexisNexis (**BR11**) databases revealed two individuals named § 87(2)(b) neither shared § 87(2)(b)s date of birth, permanent address, or any other

familial connection besides a commonly-spelled last name. Furthermore, as of the date of this report, § 87(2)(b) has not contacted, nor submitted any statement pursuant to this complaint.

§ 87(2)(g)

§ 87(2)(b) stated (**BR12**) that on January 19, 2021, at approximately 4:00 p.m., she was in her home, § 87(2)(b) in Staten Island, with her fiancé's brother, § 87(2)(b) (i.e., § 87(2)(b) when they heard someone knocking at the door. Neither § 87(2)(b) nor § 87(2)(b) answered the door nor verbally responded. After ignoring the knocks at the door for several minutes, § 87(2)(b) heard three loud bangs at the apartment door, and then several officers forcibly entered the apartment by breaking down the front door. § 87(2)(b) screamed at the officers, and asked why they broke down the apartment door and whether they had a warrant. The officers replied that they broke down the door after no one answered, and said they did not need a warrant.

Once inside, the officers repeatedly asked § 87(2)(b) where § 87(2)(b) was, and she repeatedly told them that he was not home, and was in Manhattan with a friend. § 87(2)(b) stated that the officers did not believe her, and searched the entire apartment, including each room and the bathroom for § 87(2)(b). The officers informed § 87(2)(b) that they responded to her residence because they had received a call "about something," which she could not elaborate further on. Despite denying that she knew or later learned what the substance of the call was, § 87(2)(b) stated that the call "was a prank call."

After 15 minutes of asking § 87(2)(b) and § 87(2)(b) where § 87(2)(b) was, the officers left without providing a reason why they entered, or said anything other than "where is § 87(2)(b)

The investigation obtained (6) BWC videos from the responding officers, which captured the relevant sections of this incident, and were dispositive to the above allegations, as described below.

Lieutenant Harrison's BWC (**BR01**), at 01:00 shows him approaching § 87(2)(b)'s residence, where an ambulance is parked outside. An EMT tells Lieutenant Harrison that he does not know why they were called to the location, and that he requested a call back after the 911 caller did not answer.

At 01:50 of Lieutenant Harrison's BWC (**BR01**), PO Krebs asks a male individual, identified through the investigation as § 87(2)(b) standing outside of 2nd floor apartment, if § 87(2)(b) is home," and § 87(2)(b) replies, "Yeah. Should be." At 02:00, PO Krebs knocks on the door of § 87(2)(b) and says, "Police." After no response, PO Krebs walks away, and Lieutenant Harrison's BWC shows a female individual exit the upstairs apartment, who tells the officers that § 87(2)(b) is] down there...He just came here, bout two minutes ago," and then goes back into the apartment. At 02:38, Lieutenant Harrison knocks on § 87(2)(b)'s apartment door, but does not receive a response. At 03:00, additional units arrive as present officers are heard continuing to knock on § 87(2)(b)'s door. At 03:10, an officer asks § 87(2)(b) if there is a landlord they could call who would have keys to open § 87(2)(b)'s door, but he replies there are not any spare keys for the apartment.

At 03:35 (**BR01**), PO Krebs, reading from his department-issued cell phone, confirms to the other officers that the AIDED male is § 87(2)(b) and the 911 call made on his behalf came from an unidentified third-party employed with § 87(2)(b). At 04:18, Lieutenant Harrison tells the officers to check the back of the residence for any windows to see if anyone was inside, says if there are not any windows, they may have to take the door, and remarks to PO Sherlock that § 87(2)(b) "was making suicidal threats."

PO Dawson's BWC (**BR02**), at 03:30, shows him, PO Panik, and PO Sherlock, approach the front door of the 2nd floor apartment at § 87(2)(b), wherein the female occupant welcomes the officers in and tells them that § 87(2)(b) was just up here a few minutes ago." PO

Dawson and the other officers walk through the residence to the backyard, wherein they meet with § 87(2)(b) who confirms that he saw § 87(2)(b) in his residence "a few minutes ago." § 87(2)(b) shows the officers the basement apartment windows, which are completely blocked by drapes, and despite knocking on the window, no movement or interior noise is detected by the BWC.

At 08:00, PO Dawson's BWC (**BR02**), an EMT relays to the officers that his dispatcher reported that, § 87(2)(b) s § 87(2)(b) counselor called 911 after § 87(2)(b) threatened her that he was going to commit suicide. The EMT further relays that § 87(2)(b) counselor stated that although § 87(2)(b) claimed, "he was currently in Texas," that was false, and he was at home. After a brief pause, Lt. Harrison directs the officers to "take the door," wherein PO Panik, assisted by PO Dawson, kicks the apartment door several times until it breaks off of the hinges and falls inward.

At 10:50 of Lieutenant Harrison's BWC (**BR01**) shows him enter the apartment behind PO Dawson and PO Panik, wherein § 87(2)(b) seen at the end of the hall, shouts, "You just broke my fucking door!" Lieutenant Harrison says, yes, because she did not answer the door. § 87(2)(b) then shouts, "You have no warrant to get in here!" Lieutenant Harrison replies, that they "don't need one. § 87(2)(b) is] making threats he's going to kill himself."

Between the 12:00 and 13:30 of Lieutenant's Harrison's BWC (**BR01**), the officers and EMTs repeatedly ask § 87(2)(b) for his name, and he replies, § 87(2)(b) and states that his brother, § 87(2)(b) lives in § 87(2)(b). The officers and EMTs request to see § 87(2)(b) s identification, however, he replies he does not have one. In response to their complaints about their broken front door, the officers and EMTs tell § 87(2)(b) and § 87(2)(b) that they received an emergency call, knocked on their door for several minutes, and when they did not answer, they were required to break down the door to enter based on the emergency.

PO Dawson's BWC (**BR02**), at 11:35, shows him exit § 87(2)(b) s apartment, walk up to the 2nd floor residence, wherein he asks § 87(2)(b) how many people live in the downstairs apartment, and he replies two. PO Dawson asks for the male individual's name, and § 87(2)(b) states, § 87(2)(b) and confirms he is a "white male, with long hair." § 87(2)(b) also tells PO Dawson that his name is § 87(2)(b) but her and § 87(2)(b) call him, § 87(2)(b).

At 13:50 of Lieutenant Harrison's BWC (**BR01**), PO Dawson reenters the apartment, and relays his conversation with the upstairs tenants. After several minutes of § 87(2)(b) and § 87(2)(b) claiming that neither of them lives there, and are only babysitting § 87(2)(b) s cats, Lieutenant Harrison concludes that since no one in the apartment appears suicidal, the job is over, and the officers leave.

§ 87(2)(g)

In People v Mitchell (39 NY2d at 173, 177-178), the Court of Appeals formulated a three-prong test for determining whether the police are presented with an emergency situation that justifies a warrantless intrusion into a protected area . . . In 2006 the United States Supreme Court . . . rejected

the second prong of the Mitchell test, stating that an inquiry into “[t]he officer’s subjective motivation is irrelevant” (*Brigham City v Stuart*, 547 US at 404) . . . and “no longer necessary in determining whether the Fourth Amendment . . . has been violated” (*People v Desmarat*, 38 AD3d 913, 915, 833 NYS2d 559 [2007]) . . . Under the *Mitchell* test, the first and third prongs make two related objective inquiries. The first prong asks whether the police have reasonable grounds to believe that there was an emergency at hand and an immediate need for their assistance for the protection of life or property. The third prong asks whether there is some reasonable basis, approximating probable cause, to associate that emergency with the area or place to be searched (see *People v Mitchell*, 39 NY2d at 177-178; *People v Desmarat*, 38 AD3d at 915). *People v Rodriguez*, 77 AD3d 280 [2010] (cleaned up) (**BR16**).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegations A** and **B** be **exonerated**.

Allegation C—Abuse of Authority: Police Officer William Dawson threatened § 87(2)(b) with the use of force.

PO Dawson’s BWC (**BR02**), at 09:00, shows that after forcing entry into the residence, PO Dawson moves the door out of the walkway, and then he and other officers enter the apartment, wherein § 87(2)(b) is seen at the end of the hallway, screaming, “What the fuck is your problem?!” Lieutenant Harrison is heard stating, “When we bang on the door, you answer the door,” and § 87(2)(b) replies, “He’s not here.” As PO Dawson approaches her, he asks, “Who’s not here,” § 87(2)(b) replies, “That’s my brother,” and indicates he is in the bathroom.

At 09:30 of his BWC (**BR02**), PO Dawson approaches the closed bathroom door, confirms that § 87(2)(b) s “brother” is inside, and draws his Taser. As PO Dawson opens the door, the bathroom is dark and initially appears to be empty. However, after PO Dawson steps in and moves the shower curtain aside, he finds a male individual, identified through the investigation as § 87(2)(b) crouched down in the shower, smoking a cigarette. The officers tell § 87(2)(b) to come out of the bathroom so they can talk to him and he complies.

The primary duty of all members of the service is to preserve human life. The safety of all persons involved is paramount in cases involving emotionally disturbed persons (EDPs). If such person is dangerous to himself or others, force may be used when it is reasonable to prevent serious physical injury or death. Members of the service will use only the reasonable force necessary to gain control or custody of a subject. [...] The Patrol Guide denies an EDP as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. Patrol Guide, Procedure 221-13 (**BR17**).

A Conducted Electrical Weapon (CEW) can be an effective means of subduing aggressive suspects and emotionally disturbed persons (EDPs). [...] A CEW should only be used against persons

who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. Patrol Guide, 221-08 (**BR18**).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation C** be **exonerated**.

Allegation D—Force: Police Officer William Dawson used physical force against § 87(2)(b) **s cat.**

Allegation E—Force: Police Officer Matthew Panik used physical force against § 87(2)(b) **s cat.**

As discussed above (see **Allegations A and B**) when § 87(2)(b) initially filed this complaint (**BR07**) he alleged that when officers forced entry into his home by breaking down his front door, the door fell on his pet kitten, and the officers, walking atop the fallen door, “crushed” his pet kitten to death.

During her interview, § 87(2)(b) was directly asked, after she did not independently mention during her entire interview, whether their kitten was “crushed to death,” after the officers broke down the door and entered the apartment. § 87(2)(b) affirmed (**BR12**) that one of her two kittens was killed, though she did not know which one as the kittens “[were] twins.” § 87(2)(b) stated that she noticed her kitten had been killed when she attempted to replace the front door after the incident had concluded.

PO Dawson’s BWC (**BR02**), at 8:58, shows that immediately after the front door is breached, PO Dawson picks up the door, clearly showing the floor and entryway to the apartment and, notably, no kitten is seen, and lays the door against the wall. None of the officers walk atop the door while entering. At 11:05, PO Dawson exits the apartment, wherein the entrance hallway is clearly seen, however, no kitten is observed in the hallway.

Similarly, PO Panik’s BWC (**BR03**), at 08:40, shows that after kicking down the apartment door, PO Dawson moves the broken front door, wherein the BWC clearly captures the front hallway, and no kitten is seen anywhere on the floor or in the hallway.

Finally, while Lieutenant Harrison’s BWC (**BR01**), between 10:00 and 14:00, shows at various points during the period the officers are inside the apartment, where § 87(2)(b) and § 87(2)(b) remark about their cats, which they claim they are babysitting for § 87(2)(b) no cats or kittens are seen at any point during this incident.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegations D and E** be **unfounded**.

Civilian and Officer CCRB Histories

- This is the third CCRB complaint in which § 87(2)(b) has been a party (**BR19**).
 - § 87(2)(b)

_____.

- § 87(2)(g) .
- PO Dawson, an eight-year-member-of-service, has had one prior CCRB complaint filed against him, with a total one allegations, which was not substantiated (see Officer History). § 87(2)(g)
- PO Panik, a six-year-member-of-service, has had three prior CCRB complaints filed against him, with a total of three allegations, none of which were substantiated (see Officer History). § 87(2)(g)

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator:	<u>Griffin Sherbert</u>	<u>Inv. Griffin Sherbert</u>	<u>05/09/2022</u>
	Signature	Print Title & Name	Date

Squad Leader: _____

Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____